

26LBCV00037 26LBCV00037

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26LBCV00037 Hearing Date: July 14, 2026 Dept: S25

Motion: Defendant Los Angeles Police Department's Motion for Order Requiring Plaintiff to Post a Security

Moving Party: Defendant Los Angeles Police Department ("Defendant LA")

Responding Party: Plaintiff Neel Karia ("Plaintiff")

Background

On January 5, 2026, Plaintiff filed a complaint against Defendants Christian Outreach in Action, Long Beach Rescue Mission, Luther Social Services, Beacon Light Rescue Mission, Long Beach Police Department, Los Angeles Police Department and Department of Mental Health, alleging a civil rights violation cause of action. On March 20, 2026, Defendant LA filed the instant motion for order requiring Plaintiff to post a security. That same day, Defendant LA also filed a demurrer. On April 16, 2026, Defendant City of Long Beach filed an answer. That same day, Defendant City of Long Beach filed a joinder to the instant motion. On April 24, 2026, Defendant Long Beach Rescue Mission filed a demurrer to and motion to strike portions of the complaint. On May 26, 2026, Defendant Lutheran Services of Southern California filed a demurrer to and motion to strike portions of the complaint. On May 27, 2026, Defendant Christian Outreach in Action filed an answer. That same day, Defendant Lutheran Services of Southern California filed a joinder to the instant motion.

As of July 13, 2026, no opposition has been received.

Relevant Facts

On January 6, 2026, this Court deemed Plaintiff to be a vexatious litigant in *Neel Karia v. Dignity Health St. Mary Medical Center*, Case No. 25LBCV01194. (RJN Ex. 3.) In the Court's ruling on the motion to deem Plaintiff a vexatious litigant, the Court stated that any defendant "may seek Code of Civil Procedure sections 391.1 - 391.4 relief, requiring a meritless or frivolous case be dismissed unless (Plaintiff) furnishes ordered security." (Id. at p. 8.)

Request for Judicial Notice

Defendant LA's request for Judicial Notice is granted in its entirety.

Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) When judicial notice is taken of a document, the truthfulness and proper interpretation of the document are disputable. (Ibid.) Judicial notice of a Court record is limited to the existence of the documents and is not the same as taking notice of the truth of any matters or facts stated therein. (Ibid.)

Legal Standard

"A 'vexatious litigant' [includes] a person who ... [i]n any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc. § 391, subd. (b)(3).) "Litigation," for purposes of determining vexatious litigant status, means "any civil action or proceeding, commenced, maintained or pending in any state or federal court." (Code Civ. Proc., § 391, subd. (a).)

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A particular litigation is finally determined when avenues for direct review (appeal) have been exhausted or the time for appeal has expired. (Childs v. PaineWebber Incorporated¿(1994) 29 Cal.App.4th 982, 993-994.) Any actions the pro per plaintiff has filed and dismissed counts for the purpose of the vexatious litigant statute, even if the dismissal is voluntary and without prejudice, as they still burden the judicial system and the target of the litigation. (Tokerud v. Capitol Bank Sacramento (1995) 38 Cal.App.4th 775, 779.)¿

Under the vexatious litigant statutes, (Code Civ. Proc., §§ 391-391.7), a defendant may move the court for an order requiring plaintiff to furnish security on the ground that plaintiff is a vexatious litigant and the litigation lacks merit. (Code Civ. Proc., §§ 391.1, 391.2.)¿ If the trial court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail against the moving defendant, the court must order the plaintiff to furnish security for the benefit of the moving party.¿ (Code of Civ. Proc., § 391.3.)¿

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Under vexatious litigant statute, the entirety of the litigation is stayed once the defendant files a motion to determine that the plaintiff is a vexatious litigant who should be required to furnish security in that action. (Code Civ. Proc., § 391.6.) The stay shall remain effective until 10 days after the motion is denied or 10 days after the security is furnished. (Ibid.)

Parties' Arguments

Defendant LA argues that Plaintiff has already been declared a vexatious litigant by this Court. (RJN Ex. 3.) Defendant LA also notes that Plaintiff has filed at least fifteen cases over the last eleven months. (RJN Ex. 1.) Defendant LA adds that it has been a defendant on at least five of such cases. (RJN Exs. 9, 11, 16, 20 and 21.) Defendant LA then states there is no reasonable probability that Plaintiff will prevail in the instant case as a single cause of action is not alleged against any Defendant in this action. Defendant LA asserts that Plaintiff should be required to post a security in this case and if Plaintiff fails to provide the requisite security the complaint should be dismissed. Defendant LA suggests the Court set the security at a minimum of \$10,000 or another reasonable amount to cover Defendant LA's costs and time associated with defending Plaintiff's repeat litigation.

Defendant City of Long Beach joins in the instant motion, and requests that any security ordered against Plaintiff apply equally to benefit Defendant City of Long Beach.

Defendant Lutheran Social Services of Southern California join the instant motion, requesting any order requiring Plaintiff to post security apply equally for its benefit as well.

No opposition has been filed.

Tentative Ruling

Code of Civil Procedure section 391.1 states in relevant part: “[t]he motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.”

The Court agrees that it previously declared Plaintiff a vexatious litigant in *Neel Karia v. Dignity Health St. Mary Medical Center*, Case No. 25LBCV01194, on January 6, 2026. (RJN Ex. 3.) The first condition is met. (Code Civ. Proc., § 391, subd. (b)(4) [a vexatious litigant is a person who has previously been declared to be a vexatious litigant by any state or federal court of record in any action or proceeding based upon the same or substantially similar facts, transaction, or occurrence].)

There is not a reasonable probability that Plaintiff will prevail in the litigation against Defendant LA because there is no statute alleged in the complaint that makes Defendant LA liable as a public entity. (Gov. Code, § 815, subd. (a).) Further, the Court agrees that the complaint is unintelligible.

Moreover, the Court agrees that its holding in *Neel Karia v. Dignity Health St. Mary Medical Center*, Case No. 25LBCV01194 stated “[a]s to the currently pending cases, any defendant may seek Code of Civil Procedure sections 391.1 - 391.4 relief, requiring a meritless or frivolous case be dismissed unless Plaintiff furnishes ordered security.” (RJN Ex. 3.)

For the foregoing reasons, the instant motion is GRANTED. Plaintiff shall furnish security in the amount of \$3,000 for the benefit of Defendant LA, Defendant City of Long Beach and Defendant Lutheran Social Services of Southern California in this action no later than 4:30 p.m. on August 13, 2026.

The action is stayed pending proof that such security has been furnished.

The Court will sign the proposed order submitted by Defendant LA.